

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

-----X

JUDAH SESSION,

Plaintiff,

-against-

THE CITY OF NEW YORK, Police Officer Hector J. Torres, Shield No. 1787, Police Officer David Parisi, Shield No. 25025, Police Officer Lorraine Wislocki, Shield No. 8822, Police Officer Vasilios Vasilopoulos, Shield No. 27386, Sergeant Orlando Phillip, Shield No. 1899, Sergeant Lane, Shield No. Unknown, Police Officer Valerie Wilson, Shield No. Unknown, Sergeant Joseph Alohan, Shield No. Unknown, Police Officers 7 through 10, in their individual and official capacities as employees of the City of New York,

Defendants.

-----X

**FIRST AMENDED
COMPLAINT AND
JURY TRIAL DEMAND**

17 CV 229 (JBW)(ST)

The Plaintiff, JUDAH SESSION, by his attorney, The Rameau Law

Firm, alleges the following, upon information and belief for this Complaint:

INTRODUCTION

1. This is a civil rights action for money damages brought pursuant to 42 U.S.C. §§ 1981, 1983, and 1988, the First, Fourth, Fifth and Fourteenth Amendments of the United States Constitution, Article I Sections 6, 11, and 12 of the Constitution of the State of New York, and the common law of the State of New York, against the police officers mentioned above in their individual capacities, and against the City of New York.

2. It is alleged that the individual police officer defendants made an unreasonable seizure of the person of plaintiff, violating his rights under the Fourth, Fifth, and Fourteenth Amendments to the United States

3. Constitution, and that these defendants assaulted and battered plaintiff. It is further alleged that these violations and torts were committed as a result of policies and customs of the City of New York.

4. Plaintiff seeks compensatory and punitive damages, affirmative and equitable relief, an award of attorneys' fees and costs, and such other relief as this Court deems equitable and just.

JURISDICTION

5. This Court has subject matter jurisdiction over the federal claims pursuant to 28 U.S.C. §§ 1331 and 1343. Plaintiff also asserts jurisdiction over the City of New York under 28 U.S.C. §§ 1331 and 1367.

VENUE

6. Under 28 U.S.C. § 1391(b) and (c) venue is proper in the Eastern District of New York.

PARTIES

7. Plaintiff JUDAH SESSION ("plaintiff" or "Mr. Session") is of proper age to commence this lawsuit.

8. Defendant City of New York is a municipal corporation organized under the laws of the State of New York. It operates the NYPD, a department or agency of defendant City of New York responsible for the appointment, training, supervision, promotion and discipline of police officers and supervisory police officers, including the individually named defendants herein.

9. Defendant Police Officer Hector J. Torres, Shield No. 1787

(“Torres”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Torres is sued in his individual and official capacities.

10. Defendant Police Officer Torres at all relevant times herein, either directly participated or failed to intervene in the violation of plaintiff’s rights.

11. Defendant Police Officer David Parisi, Shield No. 23025 (“Parisi”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Parisi is sued in his individual and official capacities.

12. Defendant Police Officer Parisi at all relevant times herein, either directly participated or failed to intervene in the violation of plaintiff’s rights.

13. Defendant Police Officer Lorraine Wislocki, Shield No. 8822 (“Wislocki”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Wislocki is sued in her individual and official capacities.

14. Defendant Police Officer Wislocki at all relevant times herein, either directly participated or failed to intervene in the violation of plaintiff’s rights.

15. Defendant Police Officer Vasilios Vasilopoulos, Shield No. 27386 (“Vasilopoulos”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Vasilopoulos is sued in his individual and official capacities.

16. Defendant Police Officer Vasilopoulos at all relevant times

herein, either directly participated or failed to intervene in the violation of plaintiff's rights.

17. Defendant Sergeant Orlando Phillip, Shield No. 1899 ("Phillip"), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Phillip is sued in his individual and official capacities.

18. Defendant Sergeant Orlando Phillip at all relevant times herein, either directly participated or failed to intervene in the violation of plaintiff's rights.

19. Defendant Sergeant Lane, Shield No. Unknown ("Lane"), at all relevant times herein, was an officer, employee and agent of the NYPD. Defendant Lane is sued in his individual and official capacities.

20. Defendant Sergeant Lane at all relevant times herein, either directly participated or failed to intervene in the violation of plaintiff's rights.

21. Defendant Police Officer Valerie Wilson, Shield No. Unknown ("Wilson"), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Phillip is sued in her individual and official capacities.

22. Defendant Wilson at all relevant times herein, either directly participated or failed to intervene in the violation of plaintiff's rights.

23. Defendant Sergeant Joseph Alohan, Shield No. Unknown ("Alohan"), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Alohan is sued in his individual and official capacities.

24. Defendant Alohan at all relevant times herein, either directly participated or failed to intervene in the violation of plaintiff's rights.

25. At all times relevant defendants John and Jane Doe Seven through Ten were police officers, detectives or supervisors employed by the NYPD. Plaintiff does not know the real names and shield numbers of defendants John and Jane Doe Seven through Ten.

26. At all times relevant herein, defendants John and Jane Doe Seven through Ten were acting as agents, servants and employees of defendant City of New York and the NYPD. Defendants John and Jane Doe Seven through Ten are sued in their individual and official capacities.

27. At all times relevant herein, defendants John and Jane Doe Seven through Ten either directly participated or failed to intervene in the violation of plaintiff's rights.

28. At all times relevant herein, all individual defendants were acting under color of state law.

29. The City of New York (hereinafter "The City") is, and was at all material times, a municipal corporation duly organized and existing pursuant to the laws, statutes and charters of the State of New York. The City operates the N.Y.P.D., a department or agency of defendant City responsible for the appointment, training, supervision, promotion and discipline of police officers and supervisory police officers, including the individually named defendants herein.

30. The City was at all material times the public employer of defendant officers named herein.

31. The City is liable for the defendant officers' individual actions

pursuant to the doctrine of “respondeat superior.”

FACTUAL ALLEGATIONS

32. Plaintiff is an African-American male.

33. On or about July 18, 2015, at approximately 1:00 am, plaintiff was walking when a police vehicle pulled over in front of plaintiff.

34. Defendant officer asked plaintiff for his identification card (ID).

35. Plaintiff presented his ID, but the officer ordered plaintiff to get against the wall without looking at plaintiff's ID.

36. Plaintiff panicked and took off running.

37. Another police vehicle stopped in front of plaintiff, who immediately put his hands up.

38. Another defendant officer handcuffed plaintiff, then knocked plaintiff to the ground, attacked plaintiff, kned plaintiff in the eye and forehead while slamming plaintiff's face onto the concrete.

39. Plaintiff was in pain as he bled profusely from a series of resulting open wounds on plaintiff's face.

40. Female defendant officer sprayed plaintiff in the face with mace as plaintiff bled.

41. Plaintiff screamed in pain, while several defendants, including defendant Torres and Parisi, kicked, punched, and stomped upon plaintiff's face and body.

42. At least two defendant officers landed upon plaintiff's back,

suffocating plaintiff.

43. Plaintiff screamed, "I cannot breathe!"

44. The defendant officers, including Torres, Parisi, Wislocki, Vasilopoulos, Phillip, Lane, Wilson, and Alohan, disregarded plaintiff's pleas to stop and continued to apply pressure upon plaintiff's body.

45. Plaintiff lost consciousness.

46. When plaintiff came to, plaintiff found himself at Methodist Hospital, where plaintiff was treated.

47. The defendants then transported plaintiff to a police precinct where plaintiff spent additional time in custody.

48. At the precinct, the Defendant Torres, Parisi, Wislocki, Vasilopoulos, Phillip, Lane, Wilson, and/or Alohan falsely informed members of the District Attorney's Office that plaintiff committed various crimes.

49. The assigned prosecutor thereafter incorporated defendant Torres and Parisi's false accusations against plaintiff into the complaint, which defendant Torres signed.

50. Plaintiff made a number of court appearances before the case against plaintiff was ultimately dismissed.

51. As a result of the Defendants' actions, plaintiff suffered physical injuries, mental and emotional harm of a permanent nature, loss of liberty loss of reputation, and other damages.

52. At all times during the events described above, the defendant police officers were engaged in a joint venture. The individual officers assisted

each other in performing the various actions described and lent their physical presence and support and the authority of their office to each other during the said events.

53. Defendants employed unnecessary and unreasonable force against the plaintiff. Defendant officers acted maliciously and intentionally, and said acts are examples of gross misconduct. The officers intentionally used excessive force. They acted with reckless and wonton disregard for the rights, health, and safety of the plaintiff.

54. The conduct of the defendant officers in assaulting the plaintiff directly and proximately caused physical and emotional injury, pain and suffering, mental anguish, humiliation and embarrassment. All of the events complained of above have left permanent emotional scars that the plaintiff will carry with him for the remainder of his life.

55. At no time did plaintiff assault or attempt to assault any officer, nor did he present a threat or perceived threat to the personal safety of any officer or civilian so as to warrant the repeated application of blows. Plaintiff did not provoke this beating nor did he conduct himself in any manner that would warrant any use of force, much less the excessive force actually used. Defendant officers acted sadistically and maliciously and demonstrated deliberate indifference toward plaintiff's rights and physical well-being.

56. All of the above was done in violation of federal law.

57. As a direct and proximate result of the malicious and

outrageous conduct of defendants set forth above, plaintiff's injury has become permanent in nature.

58. The conduct of the defendant officers in assaulting the plaintiff and denying him medical attention directly and proximately caused physical and emotional injury, pain and suffering, mental anguish, humiliation and embarrassment.

59. As a direct and proximate result of the said acts of the defendant officers, the plaintiff suffered the following injuries and damages:

- i. Violation of his constitutional rights under the Fourth, Eighth and Fourteenth Amendments to the United States Constitution to be free from unreasonable search and seizure of his person;
- ii. Loss of his physical liberty;

60. The actions of the defendant officers violated the following clearly established and well settled federal constitutional rights of plaintiff:

- i. Freedom from the unreasonable seizure of his person;
- ii. Freedom from the use of excessive, unreasonable and unjustified force against his person.

FIRST CLAIM

Unreasonable Force 42 U.S.C. § 1983

61. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

62. The defendants violated the Fourth and Fourteenth

Amendments because they used unreasonable force on plaintiff.

63. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

SECOND CLAIM
Failure To Intervene

64. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

65. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

66. Accordingly, the defendants who failed to intervene violated the First, Fourth, Fifth And Fourteenth Amendments.

67. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRD CLAIM
Monell

68. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

69. This is not an isolated incident. The City of New York (the “City”), through policies, practices and customs, directly caused the constitutional violations suffered by plaintiff.

70. The City, through its police department, has had and still has hiring practices that it knows will lead to the hiring of police officers lacking the intellectual capacity and moral fortitude to discharge their duties

in accordance with the constitution and is indifferent to the consequences.

71. The City, through its police department, has a *de facto* quota policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

72. The City, at all relevant times, was aware that these individual defendants routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

73. The City, at all relevant times, was aware that these individual defendants are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

74. These policies, practices, and customs were the moving force behind plaintiff's injuries.

PRAYER FOR RELIEF

WHEREFORE, plaintiff requests that this Court:

(a) Award compensatory damages against the defendants, jointly and severally;

(b) Award punitive damages against the individual defendants, jointly and severally;

(c) Award costs of this action to the plaintiff;

(d) Award reasonable attorneys' fees and costs to the plaintiff pursuant to 28 U.S.C. § 1988;

(e) Such other and further relief as this Court deems just and proper.

JURY DEMAND

Plaintiff hereby demands a jury trial.

DATED: August 10, 2017

Brooklyn, New York

AR

Amy Rameau, Esq.

The Rameau Law Firm
16 Court Street, Suite 2504
Brooklyn, New York 11241
Phone: (718) 852-4759
rameaulawny@gmail.com

Attorney for Plaintiff

TO: All Defendants

Colin Ceriello, Esq.
Corporation Counsel of the City of New York

Signature of Clerk or Deputy Clerk